

[TO BE PUBLISHED IN THE GAZETTE OF INDIA, EXTRAORDINARY, PART II, SECTION 3, SUB-SECTION (i)]

GOVERNMENT OF INDIA
MINISTRY OF FINANCE
(DEPARTMENT OF REVENUE)
Notification No. 14/2024-Customs (ADD)

New Delhi, the 12th July, 2024

G.S.R.----(E). -Whereas, in the matter of ‘Flexible Slabstock Polyol of molecular weight 3000-4000’ (hereinafter referred to as the subject goods), originating in, or exported from Singapore (hereinafter referred to as the subject country) falling under sub-heading 3907 20 of the First Schedule to the Customs Tariff Act, 1975 (51 of 1975) (hereinafter referred to as the Customs Tariff Act), and imported into India, the Designated Authority in its final findings, published in the Gazette of India, Extraordinary, Part I, Section 1, *vide* notification No.7/12/2019-DGTR, dated the 17th March, 2020 had come to the conclusion that –

- (i) there is continued dumping of the subject goods from subject country and the imports are likely to enter the Indian market at dumped prices in the event of expiry of duty;
- (ii) the domestic industry has suffered continued injury on account of dumped imports from the subject country;
- (iii) the information on record shows likelihood of continuation of dumping and injury in case the antidumping duty in force is allowed to cease at this stage;
- (iv) there is sufficient evidence to indicate that the revocation of the anti-dumping duty at this stage will lead to continuation of dumping and injury to the Domestic Industry,

and had recommended continued imposition of definitive anti-dumping duty imports the subject goods, originating in, or exported from the subject country and imported into India, in order to remove injury to the domestic industry;

And whereas, on the basis of the aforesaid findings of the Designated Authority, the Central Government had imposed the anti-dumping duty on the subject goods, *vide* notification of the Government of India in the Ministry of Finance (Department of Revenue), No. 14/2020-Customs (ADD), dated the 9th June, 2020, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), *vide* number G.S.R. 364(E), dated the 9th June, 2020;

And whereas, Shell Singapore Pte. Ltd. requested the Designated Authority for changing the name of producer from “Shell Eastern Petroleum (Pte) Ltd” to “Shell Singapore Pte. Ltd.” in its final findings, published in the Gazette of India, Extraordinary, Part I, Section 1, *vide* notification No. 7/12/2019-DGTR, dated the 17th March, 2020;

And whereas, the Designated Authority, *vide* amendment notification No. 7/24/2023-DGTR, dated the 14th February, 2024 published in the Gazette of India, Extraordinary, Part I, Section 1, dated the 14th February, 2024, has come to the conclusion that the request falls within the category of name change only and there is no change in the ownership in a manner that alters the basic nature of the business and recommended that the name of the producer, namely “Shell Eastern Petroleum (Pte) Ltd”, be amended to “Shell Singapore Pte. Ltd.” in its final findings notification No. 7/12/2019-DGTR, dated the 17th March, 2020.

Now, therefore, in exercise of the powers conferred by sub-sections (1) and (5) of section 9A of the Customs Tariff Act, read with rules 18 and 20 of the Customs Tariff (Identification, Assessment and Collection of Anti-dumping Duty on Dumped Articles and for Determination of Injury) Rules, 1995, the Central Government, after considering the aforesaid amendments to final findings of the Designated Authority, hereby makes the following amendments in the notification of the Government of India, Ministry of Finance (Department of Revenue) No. 14/2020-Customs (ADD), dated the 9th June, 2020, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), *vide* number G.S.R. 364(E), dated the 9th June, 2020, namely:-

In the said notification, in the Table, against serial number 1, for the entry in column 6, the entry “Shell Singapore Pte. Ltd.” shall be substituted.

[F. No. CBIC-190354/52/2024-TRU Section-CBEC]

(Nitish Karnatak)

Under Secretary to the Government of India

Note: The principal notification No. 14/2020-Customs (ADD), dated the 9th June, 2020, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), *vide* number G.S.R. 364(E), dated the 9th June, 2020 and last amended, *vide* notification No. 78/2021-Customs (ADD), dated the 29th December, 2021, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), *vide* number G.S.R. 909(E), dated the 29th December, 2021.